

Court No. - 21

Case :- WRIT - C No. - 27006 of 2020

Petitioner :- Raj Bahadur

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dileep Chandra Mathur

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard learned counsel for the petitioner, and Ms. Uttara Bahuguna, learned Standing Counsel for the State respondents and Shri Baleshwar Chaturvedi, learned counsel for respondent nos.2 and 3.

The present writ petitioner has been preferred inter-alia with following reliefs:

i) Issue a writ, order or direction in the nature of certiorari quashing the fresh bill from 29.6.2020 to 30.07.2020 which is annexed as Annexure no.9 to the writ petition.

ii) Issue a writ, order or direction in the nature of mandamus directing/commanding the respondent no.2 and 3 to deduct Rs.91,000/- and issue the correct bill from 31.7.2019 to 29.8.2019 and issue a fresh bill to the petitioner.

iii) Issue a writ, order or direction in the nature of mandamus directing the respondent authorities, after calling the petitioner issue the fresh bill of arrears to the petitioner and after deposit, reinstall the connection of the meter of the petitioner's Flour Mill.

After hearing the parties at length and considering the facts and circumstances of the case, once the Court has indicated its mind in negative, learned counsel for the petitioner fairly submits that the bill amount shall be fixed by the authorities and the petitioner is ready to pay the outstanding amount in easy instalments.

To the said prayer in question, from the side of Dakshinanchal Vidyut Vitaran Nigam Ltd. (DVVNL) Shri Baleshwar Chaturvedi submits that installment facility can be extended by the concerned official as is provided for under Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 and in view of this the petitioner should approach the authority concerned instead of requesting this Court to fix the installments.

We have occasion to peruse Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 and the heading of the said paragraph in itself proceeds to make a mention of installment facility. Once there is self contained provision for extending the benefit of installments, then remedy of the petitioner lies in approaching the authority concerned under Paragraph 6.14 of the U.P. Electricity Supply Code, 2005. However, in case, the petitioner moves an appropriate application as per aforesaid provision within a week's time, then definitely the competent authority/Executive Engineer shall proceed to accord relief as per law but certainly after adjusting the previous deposits made by the petitioner.

With these observations, the writ petition is ***disposed of***.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioner along with a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such it is always h verification in writing.

Order Date :- 13.1.2021

A. Pandey